

Sources of English Law

1. What countries does the English legal system include? Great Britain, England, Wales, and Scotland + Northern Ireland.

2. Name the sources of English law and say a few words about each of them. CUSTOM LAW: historically served as basis for the law, local customs refers to local rights, not enforceable until the courts recognize them, COMMON LAW: law common to the whole territory of England and Wales, unified law, a collection of court rulings, judicial precedents, uncodified law, provides a certain principle derived from a particular case, EQUITY: developed as a response to the rigidity of common law, limited numbers of actions with very strict formal requirements, remedies fixed. Equity developed its own principles, its own remedies (injunction, specific performance, rescission, rectification), a special court, STATUTE LAW: law enacted by Parliament, statute also known as Acts of Parliament, DELEGATED LEGISLATION: statutory instruments, purpose to make more detailed rules and regulations, EUROPEAN CONVENTION ON HUMAN RIGHTS:

3. How did common law develop? When country was divided into circuits, areas for the judges to visit.. similar cases were decided in similar ways, and the decisions of royal judges were held in great esteem by local judges. Lower courts gradually became bound by the decisions of higher courts. This had the effect of making the law become uniform or common through the whole country, and it is from this process that the phrase common law developed.

4. What is equity and how did it develop? Equity developed because of problems in the common law. The Chancellor developed new remedies, (to ensure the decisions were fair) that were able to compensate plaintiffs more fully than the common law remedy of damages.

5. Who creates delegated legislation and what examples do you know? Parliament to gov. ministers, administrative bodies.

The Hierarchy of English Courts

1. Describe the court network of England and Wales. Lower civil courts- county courts. Lower criminal courts- magistrates courts. High courts- 1. The Supreme Court of the UK, 2. The Court of Appeal, 3. The High Court of Justice

2. Explain the jurisdiction of each court. / CIVIL COURTS: **The Supreme Court of the UK** - highest court of appeal (appeals from the CA of exceptionally the HCJ) **The Court of Appeal** (civil division) - appeals from the High Court or county courts **The High Court of Justice** – first instance for complex cases, specialist divisions (family law, administrative law, commercial law, etc.), also second instance for appeals from county courts **County courts** – first-instance court for most civil cases of low or medium complexity. **CRIMINAL COURTS:** **The Supreme Court of the UK** - highest court of appeal **The Court of Appeal** (criminal court) - appeals from the Crown Court on points of law or the verdict **Divisional Court of the King's Bench Division (HCJ)** – criminal appeals from the Crown Court or magistrates' courts on points of law **Crown Courts** – first-instance court for serious crimes **Magistrates' courts** – first-instance court for summary offences (petty crimes).

3. Explain the jurisdiction of the Supreme Court of the UK? The UK Supreme Court is the highest court in the UK. It normally hears appeals against decisions of the Court of Appeal. It also hears appeals against rulings of the Court of Appeal in Northern Ireland and the Court of Session. It has discretionary power to choose which appeals to hear.

4. What kind of cases can it hear and does it have to hear all cases referred to it?

The Doctrine of Precedent

1. What is a precedent and what types do you know? an earlier event or action that is regarded as an example or guide to be considered in subsequent similar circumstances. Persuasive and binding.

2. What does the type of precedent depend on? In principle – first-instance courts are bound by decisions made by higher courts, but not by their own. Rulings made by lower courts (Magistrates' Courts, the County Court, the Crown Court) are not binding, but may be considered as PERSUASIVE. Decisions (precedents) made by courts in other common law countries may also be considered in adjudication, but are only treated as PERSUASIVE. The decisions of the Supreme Court of the UK (or formerly the House of Lords) are BINDING on ALL lower courts, except on the SC itself

3. What are the parts of a precedent and what is the difference between them? . Ratio decidendi (reasons for the decision) ◦ the binding part of the decision 2. Obiter dicta (things said by the way) ◦ remarks, comments explaining the decision ◦ the persuasive (non-binding) part of the decision

4. How can a precedent be treated in trial by the parties and the judge? During trial 1. Legal representatives cite precedents to the judge, trying to persuade him to follow them 2. The judge can decide to FOLLOW a precedent, which means, apply it to the case at hand 3.

Alternatively, the judge may decide to **DISTINGUISH THE CASE**, i.e. find that the facts of the case are different from the cited precedent and that the same principles, i.e. precedent cannot or should not be applied

5. What can a court of appeal do with a precedent used in the case in appeal? In an appellate procedure the court of appeal can: 1. **AFFIRM** the decision of the lower court 2. **REVERSE (QUASH, ANNUL)** the decision of a lower court 3. **VARY** the judgment – change certain parts of it. In regards to a precedent followed by the court, the appellate court can: 1. **APPROVE** – accept the choice of precedent 2. **DISAPPROVE** – reject the choice of precedent in the particular case 3. **OVERRULE** (the principle of law) – i.e. find that the reasoning (of a precedent) was wrong; the precedent may not be cited/applied again

6. What are the advantages and disadvantages of the doctrine? **ADVANTAGES OF THE DOCTRINE** } Consistency in application, which secures predictability of the outcome of cases } Law can change quickly to adapt to new circumstances } Age-long recording of cases provides for a huge amount of details, circumstances, points of law, that enhance precision in the creating of law. **DISADVANTAGES OF THE DOCTRINE** } It may restrict judicial reasoning and lead to illogical conclusions by judges } It can be difficult to understand what exactly the ratio decidendi was } Increasing complexity and volume of precedents, makes it difficult and impractical to deal with cases

Parliament and Legislation

1. What is the composition of the British Parliament? The House of Commons (650 MPs), The House of Lords (825) and The King.

2. What are the differences between the two Houses of Parliament? **The House of Commons** - salaried, elected in the national election by people, each MP represents the voters in his constituency. Checks and challenges the work of the Gov. (scrutiny), enacts statute law, debate important issues of the day, check and approve Gov. spending, meet constituents and discuss matters that concern them.

The House of Lords - non salaried, appointed by the King, Lords Spiritual (bishop), Lords Temporal (life peers, hereditary peers). Gives advice on public policy, representing the British society, revises legislation passed by the Commons, possibility for persons who have contributed to the public life of Britain to participate in gov., acts as a constitutional check.

3. What is the monarch's role? The monarch summons, prorogues and dissolves Parliament. At the beginning of each session of Parliament (usually November) and after a General Election, the King reads a speech outlining legislative proposals for the coming year. } The other role of the King is to give the Royal Assent to a Bill in order for it to become an Act of Parliament, i.e. enter into force

4. What is a bill and what types do you know? All statutes begin as a bill, which is a proposal for a piece of legislation. In the UK, there are three different types of Bill: PUBLIC, PRIVATE AND HYBRID.

5. Describe the legislative process in the British Parliament? An Act of Parliament starts as a **BILL** (a legislative proposal) } There are normally three readings for each bill, including a committee stage and a report stage } The procedure starts in the Commons and a largely similar procedure is followed in the Lords } Bills may be returned to the Commons for revision and amendments and the procedure may be repeated. When the final agreement is reached and the final version of the Bill is approved, the Bill is given the Royal Assent, thus becoming an Act of Parliament (statute)//// The legislative process starts with the first reading, which acts as a notification of the proposed measure. Second reading is the first opportunity for MPs to debate the main principles of the Bill. Committee stage is where detailed examination of the Bill takes place. Report stage gives MP an opportunity to consider further amendments to a Bill which has been examined in committee. Third reading is the final chance for a House to debate the contents of a Bill. Str.80./81. detaljnije.

The Legal Profession in England and Wales

1. What are the two types of lawyers in England? Solicitors and barristers.

2. Describe the differences in their work, rights and obligations. **Solicitors** have direct contact with lay clients, traditionally have the right of audience only in inferior courts, perceived as general practitioners. Investigate the facts of a case, do the „legwork“, prepare briefs for barristers, if the case needs to be tried at a higher court, they will instruct a barrister. Also do non-contentious work- conveyancing, drafting contracts and wills. Partnership or incorporated law firms. In large firms they can specialize in a certain field of law. Right of audience: magistrates courts and county courts. **Barristers** - professional advocates, act as legal representatives, other work : drafting documents associated with court procedure and giving specialist legal advice. Traditionally, have had the exclusive right of audience in the higher courts. Referred to as counsel. Work as sole practitioners, multiple barristers may share clerks, usually specialize in a certain area of the law. Their clients are solicitors. They do not usually have direct contact with lay clients.

3. What are the differences in their training? . Training stages for becoming a solicitor: 1.A law degree (LLB or BA+GDL),2. Legal Practice Course (LPC), 3. Look for a training contract -two -year traineeship in a firm of solicitors, 4.Licence to practice- issued by the Law Society. Training stages for becoming a barrister: 1.A law degree (LLB or BA+GDL), 2.Bar Professional Training Course (BPTC),3. approaching an Inn Of the Court, invitation to complete pupillage, 4.pupillage, 5.Full Qualification Certificate by the Bar Council, 6.Application for tenancy in chambers at one of the Inns of the Court.

4. What are the advantages and disadvantages of the split system? ARGUMENTS IN FAVOUR OF FUSION /disadvantages/} Expense to the client } Failures in communication between solicitor and barrister } A selected barrister may be too busy at a given moment so the solicitor has to hire another, sometimes at the last minute. ARGUMENTS AGAINST FUSION /advantages/} Barristers free from interruptions by clients; easier for them to detach themselves } Barristers can focus on special skills needed for public speaking, addressing the judge and the jury, which eventually benefits the lay client – preserves the quality of advocacy

American Federalism

1. What do you know about the political organisation of the United States of America?

2. Why did the 13 British colonies in America seek independence from Britain? When and how did they achieve this? Mid 18th century: Britain exerted tax-levying power in the American colonies, while they were not represented in Parliament. The Boston Tea Party (1773) – an act of rebellion against British rule.

3. What is federalism, in the context of the USA?

4. What do you know about the Articles of Confederation and Perpetual Union? Second Continental Congress - apart from the drafting of the Declaration of Independence, a committee was put together to draft a constitution for the United States } The result was the Articles of Confederation and Perpetual Union – the first constitution for the USA. Articles of Confederation laid the foundation for a confederation of states.

5. What about the Constitution and the Bill of Rights? Constitution of the United States of America, adopted on 17 September 1787 } Ratified by all 13 colonies between 1787 and 1790 } the new government, structured under the new Constitution, constituted after the ratification by a majority of nine states (as required by the Articles of Confederation) in 1789. The original Constitution featured 7 articles } It has since received 27 amendments, the first 10 of which are known as the Bill of Rights } Separation of powers – three branches } The system of 'checks and balances' between the branches of power.

6. What is the Congress? How is it organised? Federal legislative body, consists of House of Representatives and Senate

7. What powers of the Congress do you know? Financial and budgetary matters, collecting federal tax, national defense, establishing federal courts under the Supreme Court, admission of new states to the union, regulation of commerce between states and with other countries.....

The Executive Branch in the USA

1. What do you know about the powers of the American president? Executive power in the usa lies in the hands of the president. He has powers in all branches of government. Responsible for implementing laws enacted by Congress. Head of gov.and Commander in Chief of the armed forces.

2. Who does the president nominate/appoint? The Cabinet,

3. What is his role in the legislative process? Final step in the enactment of laws-his signature.

4. What do you know about the Cabinet? Heads of 15 executive departments, advisory body to assisting the President. Advisory body. Appointed by the President, confirmed by the Senate.

5. Who can remove the president from office and how? Majority in the House ..By impeachment

6. How is the president elected? Indirect presidential elections, people vote for members of the Electoral College which then in turn, elects the President and the VP. State elections (popular vote) each state votes for members of the Electoral College.popular vote- voters vote for the slate of elector which has pledged to vote for a certain presidential candidate. Bla bla.

US Supreme Court

1. Describe the network of federal courts in the USA. The federal court system has three main levels: district courts, courts of appeals and the Supreme Court of the US.

2. What's the jurisdiction of the federal courts? Criminal jurisdiction: prosecutions brought by the United States (federal crimes) ◦ Civil jurisdiction: DIVERSITY JURISDICTION – cases involving parties or subjects of dispute concerning more than one state

3. Describe the composition of the US Supreme Court. The highest judicial authority in the USA, 8 associate justices

4. How are Supreme Court justices appointed? Nominated by the President and appointed with the advice and consent of the Senate. They are removed from office only upon conviction on impeachment, they may also retire or resign.

5. What types of jurisdiction does the Court have? ORIGINAL JURISDICTION (first-instance jurisdiction) ◦ cases involving ambassadors, consuls, cases in which the US is a party } APPELLATE JURISDICTION (a.k.a. judicial review) ◦ appeals against decisions of: ☐ circuit courts (federal courts) ☐ state supreme courts if it concerns issues relating to (the interpretation of) the federal Constitution

6. What is judicial review? The power of judicial review has given the Court a crucial responsibility in ensuring individual rights, as well as in maintaining a living constitution, whose broad provisions are continually applied. The Supreme Court can overturn laws and executive decisions if it finds them to be unconstitutional (guardian of the Constitution) } It can establish precedents that are innovative and go beyond statutes, as long as they are in line with the Constitution

7. Why is it considered a controversial power by some?